

School: SWANTON ABBOTT PRIMARY

Date: 13/01/2022

Report: Remote consultation

DPE: Linda Mortimer

School member: Janice Allen, School Secretary

Consultation details

1. Housekeeping - staff changes and new staff induction
2. Review of previous actions and audits
3. Compliance documents; website and internal documentation
4. Information security and e-learning training
5. Supplier due diligence
6. Data retention
7. Record of processing (RoP) update
8. Confirm future appointments
9. Q and As

Priorities and discussions from the consultation are detailed below:

1. Staff changes - housekeeping

Reminder to set new staff up on the DPE website and delete leavers: DPE dashboard>users>add staff, either manually or bulk import. Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education.

If you have not already got GDPR training as part of your induction process, including this is good practice and is an efficient way to manage this part of the process.

2. Review of previous report(s) and outstanding actions - Meeting held on 18.11.21 with following items highlighted:

- JA confirmed that she is confident to make staff changes on Knowledge Bank. The school will ensure that GDPR 101 included in staff induction.
- Consideration of new business processes – school has had to set up an account with Stripe to facilitate Pupil Asset's online payment system. This will be reviewed at time of meeting on 13.1.22. The school confirmed that they are not considering introducing any new business processes at the moment. The school is currently seek advice on exiting a contract for shredding services and hope to sign up for a replacement service in summer term 2022.
- Cyber / Information security – school confirmed that they understand the requirement for staff training which is available on Knowledge Bank (Staying Safe Online NCSC) and understands how this will help

raise awareness. Training will be timelined, however at present the school is experiencing high staff absence and is aware of the pressure that this puts on other staff.

- Compliance documents – GDPR Policy is dated 2019. LM confirmed that these documents should be reviewed annually and JA confirmed that she will raise this with the Headteacher.
- Training records – at time of meeting on 18.11.21 negligible training registered on Knowledge Bank. The situation remains the same re training however the school recognizes that essential training (GDPR Refresh at a minimum) needs to take place, but the Head is aware of the pressure on staff due to Covid related staff absence.

3. Compliance documents, website and internal documentation

By now you should have all of your main updated compliance documents. Although the documents below are not all statutory to have on your website, for transparency and ease of managing these documents, it is good practice to have a GDPR section on your website and consider including the following documents:

Website documents:

- GDPR policy
- Privacy notice(s)
- SAR and data breach procedure
- FOI and publication scheme
- Supplier/third party list
- Consent guidance and consent withdrawal

Other useful documents to review and check that you have are:

- Work away from school policy
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- Records management and Information classification

4. Supplier due diligence

The controller is responsible for assessing that its processor is competent to process personal data in line with the UK GDPR's requirements. This assessment should take into account the nature of the processing and the risks to the data subjects. This is because Article 28(1) says a controller must only use a processor that can provide "sufficient guarantees" (in particular in terms of its expert knowledge, resources and reliability) to implement appropriate technical and organisational measures to ensure the processing complies with the UK GDPR and protects the rights of individuals.

Things to consider:

- Privacy notice/third party/supplier list - starting point
- Due diligence form
- Current and future contracts and how the RoP can be used to manage contracts
- Risks - what you should be thinking of etc

Best practice area: <https://dataprotection.education/index.php/best-practice-library/best-practice/due-diligence-best-practice-area>

Pupil Asset Online Payment System – the school is currently using this for parents to make online payments. However to enable this facility the school was required to enable a Stripe account, with Stripe acting as an API (Application Programming Interface)

LM has suggested that the school requests Pupil Asset and Stripe to complete the DPE Due Diligence questionnaire.

Stripe currently requests the following parent/customer information:

- Name
- Email address
- Parent post code
- Credit card number
- Credit card expiry date
- Credit card – details of issuer

5. Information security (phishing simulation) and e-learning training

DPE resources: <https://dataprotection.education/best-practice-library/documents/information-technology-security>

Training: <https://dataprotection.education/courses-heading/stay-safe-online-ncsc>

Information classification: <https://dataprotection.education/index.php/best-practice-library/best-practice/information-classification>

In addition, you can check out the National Cyber Security Centre website: [ncsc.gov.uk](https://www.ncsc.gov.uk) which has useful resources and tips for schools regarding cyber security:

- School resources: <https://www.ncsc.gov.uk/section/education-skills/schools>
- Governor Qs for schools: <https://www.ncsc.gov.uk/information/school-governor-questions>

One of our articles on the Education sector now being at the highest risk of cyber attacks-
<https://dataprotection.education/news/166-information-security/203-the-education-sector-now-at-highest-risk-of-cyber-attacks>

One of our articles on how you can assess your organisation's data security-
<https://dataprotection.education/news/166-information-security/220-assessing-the-state-of-your-data-security>

6. Data retention

Organisations can set deadlines, document and justify time frames they have set for retaining data. There are **two key factors**: the **purpose** for processing the data, and any **legal or regulatory requirements** for **retaining it**. One of your purposes will need to apply for you to continue to store the data. Data should not be held for longer than is needed. You shouldn't just keep data just in case you may need it in the future.

Different data systems to consider:

- Emails
- MIS
- Website
- Network/CLOUD

Tools to support you:

- There are a number of tools to support you with data retention: [IRMS](#)
- DPE's [record management](#) best practice area and records management policy
- [DfE](#) Annual review of school records and safe data destruction checklist
- [ICO](#)
- [Record of Processing \(RoP\)](#)
- Your third party list within your privacy notice
- Laws and regulations (for example, financial regulations and handbooks and limitations act:
<https://www.legislation.gov.uk/ukpga/1980/58/legislation>:
<https://www.legislation.gov.uk/ukxi/2021/833/contents/made>)
- [Microsoft retention tools](#)
- [Google retention tools](#)
- [MIS retention tools](#)
- Network scanning and retention tools - speak to your IT department

7. Record of Processing (RoP) - and DPE methodology

At the time of the meeting the following RoPs were completed:

FIN12M	Payroll process for overtime and expenses claims
FIN15M	Payroll process for contract changes
FIN06M	Payroll process for leavers
FIN07M	Financial audit
FIN13AM	New starter information

8. Confirm future appointment – an appointment was made for 18.1.22 at 10.30am – with a focus on completing relevant RoPs.

Q&As

JA recently attended online CSR training, when there was some confusion regarding guidance from the DfE. JA will forward LM the meeting notes and LM will refer to DPE compliance team.

JA raised concerns regarding when to complete a Childcare Disqualification Check. JA will forward LM the latest guidance and LM will refer to DPE legal team.